



SPONSOR: Rep. K. Williams & Sen. Paradee
Reps. Burns, Chukwuocha, Cooke, Griffith, Hensley,
Ross Levin, D. Short, Hilovsky; Sens. Hansen, Poore,
Seigfried, Wilson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 124

AN ACT TO AMEND TITLE 16 OF THE DELAWARE CODE RELATING TO STATE FIRE MARSHAL FEES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Three-fifths of all members elected to each house thereof concurring therein):

Section 1. Amend § 6612, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 6612. State Fire Marshal — Term, salary, duties, powers and responsibilities.

(5) The State Fire Marshal, with the approval of the State Fire Prevention Commission, where such regulations or amendments duly promulgated under the authority of the State Fire Prevention Commission require the issuing of a permit, license or certificate, is authorized to issue such permits, licenses or certificates and to establish a schedule of fees not to exceed the following schedule:

b. A maximum of ~~\$50~~ \$100 for a license to service portable unit fire suppression appliances.

c. A maximum of ~~\$25~~ \$100 for all other permits, licenses and certifications as required in the State Fire Prevention Regulations.

SYNOPSIS

This Act increases the maximum amount of fees that the State Fire Marshal's Office can charge as follows:

1. The maximum fee for a license to service portable unit fire suppression appliance is changed from \$50 to \$100.
2. The maximum fee for all other permits, licenses, and certifications as required in the State Fire Prevention Regulations is changed from \$25 to \$100.

These changes are being made to reflect the increasing cost of providing these services since the maximum fees were last set several decades ago.

This Act requires a greater than majority vote for passage because § 10 of Article VIII of the Delaware Constitution requires the affirmative vote of three-fifths of the members elected to each house of the General Assembly to increase the effective rate of any tax levied or license fee imposed.